

The Planning Policy Team
Planning and Borough Development
The Royal Borough of Kensington and Chelsea
Kensington Town Hall
Hornton Street,
London,
W8 7NX

4th October 2021

BY EMAIL: planningpolicy@rbkc.gov.uk

Dear Sir / Madam,

**ROYAL BOROUGH OF KENSINGTON AND CHELSEA (RBKC) NEW LOCAL PLAN REVIEW -
BOROUGH ISSUES AND OPTIONS CONSULTATION – OCTOBER 2021**

REPRESENTATION FROM IMPERIAL COLLEGE LONDON (ICL)

Thank you for the opportunity to input and inform the emerging Royal Borough of Kensington and Chelsea (RBKC) Local Plan. This representation is from Imperial College London (Imperial) in response to the RBKC New Local Plan Review: Issues and Options Consultation. These representations follow previous representations on the RBKC New Local Plan Issues Consultation which were submitted on behalf of Imperial College on 10th November 2020.

Imperial acknowledges that the new Local Plan will be RBKC's key planning policy document setting out the Council's policies to guide growth and development within the Borough for the next 20 years. It is understood that this is the second stage of drafting the new Local Plan and is part of RBKC's engagement strategy to give stakeholders the opportunity to help shape the Plan.

Imperial is strongly supportive and appreciative of this early engagement on the new Local Plan and of RBKC's proactive nature in engaging with the College directly.

This letter sets out Imperial's representations of a new Local Plan and provides Imperial's responses on key issues pertinent to the College.

Imperial College London & RBKC

Imperial College London is regularly ranked amongst the top ten best universities in the world and is the only university in the UK to focus exclusively on science, engineering, medicine and business. Imperial has recently been named University of the Year by the Sunday Times Good University Guide.

Imperial was founded in South Kensington in 1888 as part of Prince Albert's vision of a large-scale cultural and scientific quarter emerging from the success of the Great Exhibition. Over the last 125 years, Imperial's South Kensington campus has seen successive waves of redevelopment; from its Victorian and Edwardian origins to more recent building projects such as the Sir Alexander Fleming Building and Dyson School of Design Engineering. These periods of growth within RBKC have been essential in enabling the College to continue to grow, evolve and retain its position as a world-leader in education and research.

Today, the College is home to 17,000 students and 8,000 staff with an international community attracting talent from more than 125 countries. Imperial is globally recognised as delivering a world-class educational experience which is research based, student-centred, evidence-based, inclusive and

diverse, outward looking and technology enhanced. Imperial has long been committed to research and innovation and is a clear leader in terms of teaching and education of its students but also research and as a home of innovation for societal gain globally.

As the College continues to expand, it has once again outgrown its space within South Kensington and Imperial's attention has turned to the South Kensington campus to ensure it is prepared to meet future needs and utilise the locational benefits of the Borough, which are paramount to the Colleges success.

Over the next five years, Imperial seeks to build upon their research-led, entrepreneurial environment and focus upon the ways the College can help to make society become more sustainable, healthy, smart and resilient. To achieve this, Imperial seeks a number of objectives including and not limited to:

- The recruitment of a diverse staff group, capable of enhancing the quality of research and education at the College.
- The location of global research hubs within the Borough; and
- The expansion and adaption of existing buildings to cater for the new demands arising from these strategic goals.

As with all large institutions, Imperial's South Kensington campus is at risk of being developed in a piecemeal and limited fashion if the planning policy framework fails to be flexible and forward-thinking enough to allow for the College to adapt and develop.

Imperial College London Representations

Q.1.1. What do you think should be included in the New Local Plan's vision?

Imperial supports the vision to reduce inequality across the Borough by providing affordable homes, a basis for employment opportunities and supporting facilities to enable residents to live and play.

However, Imperial considers that reducing inequality is a more comprehensive challenge than those limited matters identified by the council. Reducing inequality must include consideration of education and opportunities to access education and we were surprised to see education omitted from the list of the council's priorities when it comes to addressing inequalities.

As the council are aware, improving access to education and education opportunities is critical to reducing inequality. This should be reflected within the infographic labelled Figure 1.3 which generally refers to secondary education and omits the influence and importance of university education within the Borough.

Similarly, Imperial supports the council's vision for an inclusive, connected, green and beautiful Borough. However, the benefits of such a Borough should not be limited to just residents. The Plan should recognise how these factors can influence the attractiveness and sustainability of the Borough for all its users and occupants, a significant proportion of which may not necessarily live in RBKC, these points being particularly pertinent given the need to reenergise the local economy and to bring all people back into central London.

Imperial also supports the need to protect the existing cultural offer and internationally recognised town centres. Imperial is a leading university and a key asset to the Borough. The College firmly considers that its campus and education facilities more broadly, make a significant contribution to the cultural diversity and attractiveness of London.

2. Key Concepts

Q 2.1. Please give us your views on the key concepts, should there be any others?

While Imperial is supportive of all the key concepts, we recommend that the following key concepts should be included within the Plan:

- Flexible Borough - A Local Plan that acknowledges the importance of flexibility within planning policy in line with government aspirations and manifesting through recent changes to the Use Classes Order and publication of the White Paper - Planning for the Future. The Local Plan should acknowledge changing ways of teaching, working and collaborating and establish policies which allow for a more flexible range of uses which review the contribution the use makes to the character, place-making, public realm and economy of the area.
- Acknowledging the role Imperial plays with respect to the points in the National Model Design Code shown in figure 2.1, specifically, the importance of education's contribution to mixed and integrated uses, local attractiveness and distinctiveness and therefore the creation of character and community.

3. Places

Q 3.2 and 3.3. Please let us know your views on these areas of change?

Imperial agrees with the identification of South Kensington as an area of national and international interest.

However, the area needs to be recognised not just for its cultural influence but additionally as an educational research and innovation hub, attracting many students, workers, STEM researchers, visitors and residents engendering a strong sense of place and local distinctiveness.

Paragraph 3.2 of the consultation document acknowledges that key areas of the Borough, which benefit from a particular national or international reputation need to evolve and adapt if they are to continue to remain world leading places of quality and the plan should recognise the importance of flexibility within policy making if this objective is to be achieved. The College requires flexibility to ensure it can remain an international leader in education and to enable the College to adapt and reinforce its appeal as a place to visit. The College makes a substantial contribution to place and positive placemaking and culture within RBKC both in its own right and as part of the collaboration the College provides to other key local institutions also of national and international importance, including the Science Museum.

Q.3.2. Last time you told us that we identified the correct places. You can let us know your views again.

No comments

Q.3.3. The council will look again at the existing visions for these Places and consider whether they remain appropriate. Do you have any views on the shorted visions for the places? Is there anything else we should include?

See above comments.

4. A zonal planning system

Given the number of areas of change identified in Section 3, the College are surprised that this is not reflected in larger areas of land being provisionally identified as growth areas. Opportunities for growth are key in providing flexibility and are necessary if RBKC is to meet its challenging targets for residential and commercial development. There are contradictory and conflicting policies found between the areas identified in Sections 3 and 4.

The College acknowledge the recent Cabinet reshuffle and the appointment of the Rt Hon Michael Gove MP as Secretary of State (SoS), which is likely to have significant implications for the Governments planning reforms as set out in the White Paper 2020. However, on the basis, that the Government White Paper proposals are advanced as they currently stand, the College would comment as follows:

- Current legislation should be followed.
- The College welcome the identification of Chelsea and Westminster and Old Brompton as a Renewal Area.
- The Colleges South Kensington Campus should be designated as a Renewal Area and not as a protected area.

5. A 'call for sites'

Q.5.1. Are you aware of any sites that might be suitable for new development? and Q.5.2. Do you agree with the current site's categorisation? Do you find them suitable for development?

The college have no specific comments in relation to the sites identified. In relation to site 5, the college broadly support the redevelopment of South Kensington Station but note that the council are identifying many sites within the allocations which are already significantly advanced in the planning process and which in a number of cases already benefit from full planning permission.

One approach which may assist the Borough in this respect would be to have more flexibility policies in place in relation to the development of existing buildings, enabling them to evolve and adapt to maximise their potential and thus significantly broadening the potential pool of available 'sites' for development while also presenting 'windfall' opportunities as opposed to larger scale demolition and replacement where it is harder to find suitable sites.

6. Green-blue future

Climate change and building design

Imperial College London is committed to achieving a sustainable, healthy, resilient, and smart society.

The College recognises the role of universities globally to contribute to achieving net zero carbon emissions by 2050, in line with the objectives of the Paris Agreement. The College itself aspires to reach net zero by 2040 and as such, it is in support of all reasonable measures taken by RBKC to improve sustainability in its built environments.

Q.6.1. Which of these options do you support? You can pick more than one.

Option supported by Imperial College	Comments
Energy Hierarchy – be lean – Option 1	
Energy Hierarchy – be lean – Option 2	Suggest that the policy is reworded to “ <i>all development should seek to become net-zero carbon by following the principles of the London Plan energy hierarchy to reduce carbon emissions.</i> ”

Energy Hierarchy – be lean – Option 3	this suggestion would be beyond the fair and reasonable remit of the planning system at this early-stage policy consultation. It is also suggested that this could restrict and curtail innovation of occupiers when it comes to the preparation and evolution of their own ESG policies. The College would suggest that more evidence is required for a policy like this to be imposed. Unregulated carbon is of course an issue which must be tackled. The targets suggested are valid but should be aspirational in the absence of other information.
Energy Hierarchy – be clean – Option 1	
Energy Hierarchy – be green – Option 1	
Energy Hierarchy – be seen – Option 1	

Third Party Standards

Option 1 - Imperial supports a BREEAM excellent rating in relation to new major development, provided it is an entirely new building. Given the council's strategic approach to sustainability which seeks retention and renewal of existing buildings in accordance with the circular economy and embodied energy principles, we would recommend that alternative standards are proposed retaining the existing 'very good' BREEAM targets for mixed retained and new building development, for example, commercial building(s) with a new roof extension. Additionally, the Passivhaus certification should not be a prescriptive standard but instead be used as an aspiration.

The College's sustainable strategy is that all construction and refurbishment projects will be measured against ambitious external environmental performance certifications, such as BREEAM. Further details of the College's plans can be read here: <https://www.imperial.ac.uk/sustainable-imperial/resource-management/sustainable-construction-and-refurbishment/>

Overheating

Option 1 – suggested changing within the wording to “*all new build development should minimise the potential for internal overheating and reliance on air conditioning systems in accordance with the London Plan 2021 cooling hierarchy.*” This would ensure compliance with the London Plan and ensure that alterations and extensions to existing buildings are not overtly affected.

Q.6.2. Do you have any other options to suggest?

Imperial works extensively within the fields of sustainability and energy efficiency which is a cauldron of current innovation. With regard to policies concerning sustainability, flexibility to apply these would be considered highly advantageous, rather than prescriptive standards as suggested previously. Imperial supports a number of businesses in their bids to tackle world issues relating to climate change. It is a core partner of the EIT Climate-KIC initiative, which seeks to accelerate the transition to a zero-carbon, climate resilient society and has considerable exposure to innovative techniques for construction.

Biodiversity

Q.6.9. Which of these options do you support? You can pick more than one

Option 1 – support

Option 2 – The College broadly support the principle of option 2 but consider there will be limited opportunities to enhance biodiversity beyond London Plan standards on small scale developments. This may also impact viability on smaller scale projects and minor alterations.

Q.6.10. Do you have any other options to suggest?

As stated above, Imperial does a lot of work in these relevant fields. Policies and approaches within the Local Plan should be flexible to allow a variety of techniques and methods to be applied.

Greening

Q.6.11. Which of these options do you support? You can pick more than one.

Option 1 – support

Option 2 – The College supports the principle, although delivery within minor applications may impact viability on smaller scale projects and minor alterations.

The College therefore recommends that the policy should acknowledge within its wording, or its supporting text, that reasonable attempts should be made to achieve a UGF net gain.

Option 3 – Imperial considers that while greening within the Borough is important, providing UGF scores in excess of the London Plan could affect the viability of minor schemes and should not compromise contributions for other social benefits.

Q.6.12. Do you have any other options to suggest?

No comment.

7. Homes

Delivering the homes we need

Q.7.1. Which one of these options do you support? You can pick more than one

Option 1 – support. Due to the current lack of housing provisions, the approach should also look at maximising the dwelling yield in terms of unit numbers, while being responsive to local character and context irrespective as to whether a character study has been undertaken or not.

Option 2 – support.

Protecting existing homes

Q.7.3. Which one of these options do you support? You can pick more than one

Option 1 – Imperial supports the flexibility within all types of housing, which is especially pertinent when it comes to the historic under delivery of housing within the Borough. We support the current policies resisting amalgamation of existing dwellings as well as the existing guidelines stating amalgamation should not result in over 170 sqm of floorspace. This policy approach has been tested within surrounding London Boroughs including Westminster.

Option 2 – support. A number of Imperial's students and staff are reliant on HMOs as a form of housing. Imperial supports their protection as it will allow for greater affordable housing provision and housing choice within the Borough. Imperial also believes emphasis should be given to maintaining quality within HMO provision. Imperial fully supports the principle of improving existing HMOs where they meet acceptable standards.

Option 3 – support.

Community Housing

Q. 7.5. Which one of these options do you support? You can pick more than one

There should be a threshold for community housing within the Borough, otherwise this will undermine the inclusion and diversity of the Borough.

Options for when community housing is triggered – Option 1 – The College is supportive of community housing which is important in providing housing choice, flexibility and contribution to a mixed and balanced community.

Options for when community housing is triggered – Option 2 – see comments for option 1.

Options for when community housing is triggered – Option 3 – support. Notwithstanding comment above, it would be necessary to perform according to national policy regardless.

Options for percentage community housing – Option 1 – support

Options for percentage community housing – Option 2 – support

Options for which community housing products to secure – Option 1 – premature at this early stage to set prescriptive standards on tenure and this should be informed by SHLAA and other documents forming RBKC evidence base. Notwithstanding, Imperial would ask the council to consider homes for key workers as a form of affordable/community housing, ensuring that Imperial staff (and indeed staff forming the key worker backbone of many other similar key institutions in RBKC) are able to attract and reside within the Borough.

Options for payments in lieu – Option 1 - support.

Other Housing

Q. 7.9. Which of these options do you support? You can pick more than one

Build to rent – option 1 – support

Build to rent – option 2 - support

Other forms – option 1 – Imperial would support the council's greater consideration as co-living as an additional and alternative of smaller scale housing which is affordable and increases housing choice. Imperial often has visiting professors / staff from overseas, and they require high quality, short term, easy access to housing, which co-living provides. Co-living accommodation is also helpful in transitional periods for new staff. Imperial assume the Interim Viability Study will be undertaken by the council to support this.

Other forms – option 2 – support in line with national policy.

Other forms – option 3 – support.

The college support the provision of purpose-built student accommodation, but to also acknowledge that the loss of student accommodation should be acceptable where an education institution can demonstrate a surplus to demand or no longer fit for purpose. Policy should also recognise and allow for the change of use of student accommodation where the change of use leads to educational or wider public benefit to the Borough.

Student accommodation - Option 1 – Support policy but not in isolation – particularly due to need to provide same number of rooms.

Student accommodation - Option 2 – support as above.

Student accommodation - Option 3 – Concern regarding the element '*do not compromise the provisions of general housing*' general housing not to be prioritised if there is a need for student accommodation.

Student accommodation - Option 4 – support as above.

Student accommodation - Option 5 – Imperial do not support. This would be a major viability concern.

Student accommodation - Option 6 – Imperial is supportive of affordable student accommodation and operates its undergraduate halls of residence on a break-even basis. The College does not support this policy suggestion without a viability threshold as it has significant potential to reduce the supply of student accommodation in the Borough; the 35% viability threshold as outlined in the London Plan is considered to be appropriate.

Q. 7.10. Do you have any other options to suggest?

An option to provide affordable student in line with London Plan where possible, subject to viability testing.

9. Offices

Q 9.1 Which of these options do you support? You can pick more than one

Option 2 – support. Release offices in certain locations or within certain types of premises. This relates to the Government's current White Paper proposals, need for flexibility and requirements for significant evidence in order to demonstrate a lack of need for office. With proposed Article 4, clusters of office will be protected from prior approval.

Option 5 - refers to Article 4 - Imperial support Article 4 in relevant areas, office clusters and smallest geographical area possible. Not the Imperial campuses. The College has recently responded to the Council consultation in relation to the Article 4 and we enclosed these representations.

11. Transport

Traffic Congestion

Q.11.3. Do you support this option?

This policy requires flexibility. The College supports the transition away from private modes of transport, although the College's activity requires regular servicing and has an operational requirement for car parking spaces.

13. Conservation and Design

Tall buildings

Q 13.1 Which of these options do you support? You can pick more than one.

Definition of tall building - Option 2 – support. Imperial supports the development of a policy which is specific to the borough and seeks to ensure that proposal for new tall buildings can be compatible with their surrounding context as opposed to a blanket wide regional policy.

Appropriate locations – Option 2 – support these site allocations and draft policy approach, which provides more flexibility enabling maximum potential heights for new tall buildings to use as a minimum the height baseline established under extant permission(s), while allowing further flexibility subject to assessment against the relevant appropriate heritage and townscape context.

Appropriate locations – Option 3 – support. Given the significant development pressures facing the Borough, it would be important for the policy approach to achieve at least the same height and quantum of development should existing tall buildings be brought forward for redevelopment.

Q 13.2 Do you have any other options to suggest?

No comments

Design, quality, character and growth

Q 13.3 Which of these options do you support? You can pick more than one.

Option 3 is supported. The policy approach should seek to nurture and create a high quality built environment in accordance with key design principles to allow flexibility and encourage innovation rather than seeking to deliver a potentially unduly prescriptive design code for large areas or indeed the entire Borough, which could present not only a number of resource challenges (for the council in writing it) but which could also give rise to a number of contradictions especially, given the diverse urban form and built character experienced across RBKC.

Fire Safety

Imperial supports all reasonable measures that result in improved fire safety features within its own buildings and those across RBKC.

We trust that the above representations will be considered as part of the drafting of the New Local Plan. We appreciate the proactive engagement we have had with RBKC to date and wish to continue this relationship to support the Borough through further engagement and evidence provision as the Borough drafts its new Plan.

Should you wish to discuss any aspect of this representation, please do not hesitate to contact [Rory Newman](mailto:r.newman@imperial.ac.uk) at r.newman@imperial.ac.uk.

Yours Faithfully,

Imperial College London

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Imperial College Representations in relation to RBKC Article 4 consultation

The Planning Policy Team
Planning and Borough Development
The Royal Borough of Kensington and Chelsea
Kensington Town Hall
Hornton Street,
London,
W8 7NX

14th September 2021

BY EMAIL: planningpolicy@rbkc.gov.uk

Dear Sir / Madam

**ROYAL BOROUGH OF KENSINGTON AND CHELSEA – CONSULTATION ON PROPOSED ARTICLE 4
DIRECTION - CLASS E (COMMERCIAL, BUSINESS AND SERVICE) TO C3 (RESIDENTIAL)
REPRESENTATIONS BY IMPERIAL COLLEGE LONDON**

Thank you for the opportunity to input and inform the proposed introduction of a new Non-Immediate Article 4 Direction for the Royal Borough of Kensington and Chelsea (RBKC), seeking to remove permitted development rights which allow the conversion of Class E (commercial, business, and service) to C3 (dwelling houses). This representation is made by Imperial College London (Imperial) in response to the Article 4 consultation.

Imperial acknowledges that the Royal Borough of Kensington and Chelsea (the 'Council') has an existing Article 4 Direction which removes permitted development rights for changes of use from B1(a) (offices) to C3 (dwelling houses) across the entire Borough. As a result of subsequent changes to the Use Classes Order in September 2020 and the introduction of the new permitted development right (Class MA) in March 2021, the Council are now consulting on a new Non-Immediate Article 4 Direction proposed to come into effect on 1st August 2022, immediately following expiry of the current Article 4 Direction.

It is understood that whilst the existing Article 4 only seeks to protect office space from conversion to residential, that under the new Use Classes Order the new permitted development right would allow the change of use of all Class E uses, including a wide range of commercial floorspace (such as offices, retail, restaurants, cafes, health centres, creches and gyms) to residential use without the need for planning permission. It is understood that the Council are therefore seeking to protect all Class E uses within the new Class E use class from conversion to residential (Class C3) in recognition of the contribution such uses are considered to make by RBKC to the role and function of the borough.

The Council has reviewed the spatial extent of the proposed Article 4 and has concluded that, given the geographical spread of the borough's office uses, and the nature of existing clusters, that the Article 4 should cover the whole borough. This reflects the full borough exemption sought, and granted, to the original office to residential Permitted Development Rights through the existing Article 4.

This letter sets out the location and role of Imperial's campuses within RBKC and provides an assessment as to the appropriateness of the new proposed Article 4 Direction across these locations and its conformity with the NPPF (2021). In summary, Imperial College London objects to the proposed Article 4 Direction in so far as it effects their Estate on the basis that there is no reason to include the Imperial Estate within the proposed Article 4 Direction for the reasons, we set out in these representations below.

a. Imperial College London & RBKC

Imperial College London is regularly ranked amongst the top ten best universities in the world and is the only university in the UK to focus exclusively on science, engineering, medicine and business.

Imperial was founded at South Kensington in 1888 as part of Prince Albert's vision of a large-scale cultural and scientific quarter, emerging from the success of the Great Exhibition. Over the last 125 years the South Kensington campus has seen successive waves of redevelopment; from its Victorian and Edwardian origins to more recent building projects such as the Sir Alexander Fleming Building and Dyson School of Design Engineering which opened in 2018. These periods of growth within the area have been essential in enabling the College to continue to grow, evolve and retain its position as a world-leader in education and research.

Today, the College in its entirety is home to 17,000 students and 8,000 staff with an international community attracting students from more than 125 countries. Imperial is globally recognised as delivering a world-class educational experience, which is research focussed, student-centred, evidence-based, inclusive and diverse, outward looking and technology enhanced. Imperial has long been committed to research and innovation and is a clear leader in terms of quality of teaching, education of its students but also research and as a home of innovation for societal gain globally.

The College's core operations are located within South Kensington and the long-term success of this campus is fundamental to the College's ongoing and future research and educational offering. Imperial also have further campuses within the Borough, including Chelsea and Westminster and Royal Brompton campuses, which both provide teaching and research facilities intrinsically linked to the medical services in those locations.

Over the next five years Imperial seeks to build upon its research-led, entrepreneurial environment across the three campuses and focus upon the ways the College can help to make society become more sustainable, healthy, smart and resilient. To achieve this, Imperial seek a number of objectives including and not limited to:

- The recruitment of a diverse staff group, capable of enhancing the quality of research and education with workforce able to live within the Borough;
- The location of global research hubs within the Borough; and
- The expansion and adaption of existing buildings to cater for the new demands arising from these strategic goals.

As with all large institutions, the campuses are at risk of being developed in a piecemeal and limited fashion if the planning system fails to be flexible and forward-thinking enough to allow for the College to adapt and develop.

b. Imperial College & the proposed Article 4 Direction

Imperial has three main campuses within RBKC: South Kensington, Royal Brompton and Chelsea and Westminster.

Imperial's South Kensington Campus is located to the southeast of the Borough, stemming out from the Exhibition Road. The College buildings are situated within the South Kensington Cultural Area, designated to support the cultural and educational institutions that locate along the Exhibition Road.

The College's Royal Brompton Campus is located further south within the borough, between the A308 (Fulham Road) and the A3217 (King's Road), bordered by both Dovehouse Street and Cale Street. The Chelsea and Westminster Campus is located further southwest of Royal Brompton, positioned on the A308 (Fulham Road) in close proximity to the junction with the A3220 (Edith Grove).



Figure 1: Imperial RBKC Campus Locations

The Council's proposed Article 4 to restrict the change of use from Class E to residential use is intended to cover the entire Borough and therefore, all three Imperial campuses.

The Council have justified the need for a borough-wide Article 4 on the basis that the borough is small in area and densely developed. As a result, the Council argue that the borough is characterised by a vibrant and 'closely related set of interconnected business clusters'. These clusters are noted as being areas where '*commercial, business and service uses are more concentrated, such as within the larger town centres and within the three Employment Zones*'. The Council also notes that business premises are widely spread through residential areas, for example within commercial mews and near smaller local centres.

As a university, the majority of the College's buildings fall within Use Class F1(a) (Education) or Sui Generis, student accommodation. Where potential Class E uses are present, these form buildings or areas within buildings which are within the heart of campus spaces, with many offering an important supporting function to the primary educational use of the Imperial Estate. In other instances they offer medical or research floorspace directly connected to the College students and staff. Neither of the sites lie within an Employment Zone, nor do the sites specifically contribute to the retail function of any larger town centres.

It should also be recognised that the Class MA permitted development right is restricted within Conservation Areas, particularly at ground floor level. The majority of the potential buildings in Class E use fall within this category. Those buildings are detailed overleaf:

Address	Use	Use Class (As of Sept 2020)	Conservation Area
Bernard Sunley House, 40 – 44 Evelyn Gardens	Student accommodation	Sui Generis	South Kensington Conservation Area
Fisher Hall, 12 – 30 Evelyn Gardens	Student accommodation	Sui Generis	South Kensington Conservation Area
52 Evelyn Gardens	Residential	Use Class C3	South Kensington Conservation Area
Holbein House & Southwell Hall, 51 – 69 Evelyn Gardens	Student accommodation	Sui Generis	South Kensington Conservation Area
Willis Jackson House, 64-66 Evelyn Gardens	Student accommodation	Sui Generis	South Kensington Conservation Area
Biochemistry Building, Imperial College Road	Education floorspace	Use Class F1(a)	Queensgate Conservation Area
Chemistry Building, Imperial College Road	Education floorspace	Use Class F1(a)	Queensgate Conservation Area
Flowers Building, Imperial College Road	Education floorspace	Use Class F1(a)	Queensgate Conservation Area
Sir Alexander Fleming Building, Imperial College Road	Education floorspace	Use Class F1(a)	Queensgate Conservation Area
Chelsea and Westminster	Medical services and education space	Use Class E / Use Class F1(a)	N/A
Old Brompton	Medical services and education space	Use Class E / Use Class F1(a)	Part Chelsea Park/Carlyle Conservation Area

Based on the above, there are limited circumstances in which the new permitted development right (Class MA) could be utilised within the Imperial campuses. As such, it is considered that there is no requirement or justification for Imperial's RBKC Estate to be included within the proposed Article 4 Direction area.

In addition, where Class E floorspace in non-listed buildings lies within the hospital campuses, it cannot be regarded as a 'Class E cluster'. If Imperial were to utilise the flexibility of permitted development rights available to Class E uses, this would only affect a small amount of Class E land and property within their estate. This is primarily due to the limited amount of Class E floorspace present on the medical campuses, in addition to Class MA restrictions which place a maximum limit of 1,500 sqm of convertible floorspace per building. On that basis, where floorspace could be converted, this would not undermine the purpose of any nearby Class E cluster. There is therefore no reasonable justification to prevent the limited amount of Class E land present on the Estate from turning to other uses.

Furthermore, where buildings or floorspace could utilise the Class MA permitted development right, the likelihood of this being implemented is minimal. As mentioned above, the limited Class E spaces within the Imperial estate are located at the heart of campuses and provide important supporting functions to the wider educational estate. It is unlikely that any of these buildings would be converted to normal residential use as it would require the privatisation of the buildings and their effective severing from the Estate. It would also present a number of extraordinary practical challenges which would make such a

change of use entirely unrealistic such as requiring residents to travel through and within College educational buildings before they could access their residential unit. For any future Class E development or change of use via the normal planning application process, this rationale and inherent restrictions would continue to apply due to the primary function of the campuses for educational and research purposes.

Whilst the Council seeks to utilise regional and local planning policy to protect the borough and its commercial functions, RBKC Local Plan (2019) policies also seek to support educational clusters. The planning system within RBKC should acknowledge the importance of flexibility in line with recent government thinking, highlighted within recent changes to the Use Class Order and publication of the White Paper – Planning for the Future. As part of this, the Borough should recognise the changing ways of teaching, working and collaborating and therefore retain sufficient flexibility for Imperial's assets which allow the College to react quickly to changing environments and demands.

Acknowledging Imperial's historic relationship and role with the Borough and the College's strategic aims, Imperial requests that RBKC consider the above when deciding on the extent of the proposed Article 4 and respectfully request that the entirety of the Imperial College London land holdings be removed from the remit of the proposed new Article 4 Direction.

c. Proposed Article 4 and compliance with NPPF (2021) policy

The government has recently published a revised version of the National Planning Policy Framework in July 2021. These revisions, included changes to paragraph 53 which refers to the use of Article 4 Directions. Most notably, the proposed changes seek to limit the use of Article 4 Directions where it is essential to avoid '*wholly unacceptable adverse impacts*'. The new wording also now restricts Article 4 Direction's to the '*smallest geographical area possible*'. We take these two points in turn below.

'Wholly unacceptable adverse impacts'

As noted above, the Council utilises the scale of the borough and the number and proximity of business clusters as justification for the proposed Article 4 Directions across the entire borough. The Imperial campuses, at South Kensington, Royal Brompton and Chelsea and Westminster primarily function as educational and research and development space. The campuses contain limited Class E floorspace and in most circumstances this is ancillary to the primary educational use. The campuses cannot be regarded as a Class E cluster, nor contribute to an adjacent Class E Cluster and there are extremely limited opportunities to convert any Class E floorspace to residential.

The conversion of any existing Class E floorspace at these sites will therefore be limited at best and will not undermine the vitality and viability of the borough, nor its commercial function and therefore not cause wholly unacceptable adverse impacts to the area. On this basis, the inclusion of both campuses within the Article 4 is unjustified.

'Smallest geographical area possible'

Any Article 4 Direction to restrict the Class MA permitted development rights should be applied to specific Class E clusters, whereby the clustering of Class E could lead to the loss of an important commercial area. As noted above, the Imperial campuses do not form a commercial cluster, nor do they incorporate significant amounts of Class E floorspace. Justification and evidence to include the campuses has not been provided and it therefore cannot be concluded that the Article 4 proposed has been limited to the smallest geographical area possible.

On the basis of the above we therefore respectfully request that the boundary of the Article 4 is altered to remove the Imperial College South Kensington, Royal Brompton and Chelsea and Westminster campuses in line with the revised wording of the NPPF.

We trust that the above representations will be considered as part of the revisions to the Article 4 Direction.

Should you wish to discuss any aspect of these representations, please do not hesitate to contact Rory Newman or Chand Patel.

Yours Faithfully,

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